CODE 13 — BIODIVERSITY, SANCTUARIES AND FAUNA

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Art. 1 — Subject matter, definitions and legal nature

1. This Code governs:

   a) the protection of biodiversity;

   b) the establishment and management of ecological sanctuaries and refuge sanctuaries;

   c) the protection of wild fauna and wild pollinators;

   d) the definition of animal welfare parameters in the matters falling within its competence;

   e) the protection of proximity companion animals.

   Biodiversity, the related ecological functions and animal welfare constitute necessary conditions for the continuity of the Basket, the protection of health, the management of the habitat and the organisation of care.

2. For the purposes of this Code:

   a) **biodiversity** means the variety of species, populations, ecosystems, ecological interactions and genetic heritage present in a territory;

   b) **wild fauna** means all the animal populations that are not permanently managed by human beings and live in conditions of freedom;

   c) **wild pollinators** means wild bees, bumblebees, butterflies, hoverflies and other pollinating organisms not housed in the custodial hives provided for by Code 9;

   d) **ecological sanctuary**, hereinafter also “sanctuary”, means an area dedicated to the protection of ecological integrity, to the refuge and reproduction of species and to the free evolution of ecosystems, in accordance with the regime provided for by this Code;

   e) **functional ecological corridor** means a biological function of connection between habitats, populations and ecosystems. The location, geometry and territorial constraints of the corridor are governed by Code 10; the parameters of its biological functionality are governed by this Code;

   f) **refuge sanctuary** means the separate Community provided for by Article 13.4 of the Constitution, in which there live, with the right to life and to care, animals rescued from systems of exploitation, those retired from collaboration and those for which the conditions of non-exploitative cohabitation are not met;

   g) **proximity companion animal** means an animal that lives permanently with one or more persons in a continuous relationship and shares their living space with them, without being intended for food production or systematic work;

   h) **animal welfare** means the physical and mental state of the animal, assessed according to the domains of nutrition, physical environment, health, behavioural interactions and mental state, on the basis of the indicators defined in the relevant STVs and Welfare Sheets.

3. For the purposes of the allocation of competences:

   a) wild fauna, wild pollinators, the wild genetic heritage, the function of integral protection proper to sanctuaries and the essential knowledge of ecology and animal welfare are inalienable ecological commons;

   b) the biological functionality of corridors, ecological connectivity and the capacity for wild pollination constitute ecological functions of infrastructural importance;

   c) the land, the location of corridors, buffer zones as cartographic constraints and the Land Register remain territorial commons governed by Code 10.

4. The classification provided for by this Article does not modify the ownership or territorial regime established by the other competent Codes. Wild fauna, wild pollinators and the wild genetic heritage may not be the object of exclusive appropriation. Proximity companion animals may not be treated as commodities nor subjected to economic exploitation incompatible with their welfare.

Art. 2 — Principles

1. **Non-appropriation.** No wild species or population, no wild genetic heritage, nest, den or wild hive may be subjected to exclusive private ownership, patent, exclusive title or rent, in the manner and within the limits established by this Code and by the competent Codes.
2. **Precaution.** Where there are documented scientific elements of uncertainty as to the compatibility of an intervention with biodiversity, animal welfare or biological functionality, a proportionate measure suitable for preventing or reducing the risk shall be adopted, within the competences of this Code. The precautionary principle does not transfer to this Code competences assigned to Codes 6, 8, 9, 10 and 14.
3. **Federated ecological connection.** Every Circle 1 shall contribute to the biological functionality of ecological corridors. The mere cartographic representation of a corridor is not sufficient to demonstrate its functionality. Indicators and thresholds are defined in the Biodiversity and Corridors STV, adopted jointly in accordance with the competences of Codes 10 and 13.
4. **Integrity and reversibility.** Every intervention permitted in a sanctuary or liable to affect the functionality of a corridor shall provide, where technically applicable, for ecological restoration measures and a reversibility plan. Within the competences of this Code, the protection of ecological integrity constitutes a priority criterion.
5. **Non-commodification.** It is prohibited to establish rents on wild fauna, on wild pollinators, on the function of wild pollination, on access to sanctuaries as commons and on essential ecological functions. The STVs and Safety Sheets essential for protection may not be placed behind a paywall.
6. **Proportionality and minimisation.** Monitoring is permitted exclusively where necessary for the protection of biodiversity, for ecological safety, for the verification of animal welfare, for the assessment of the pollination function or for ecological resilience. Data shall be processed in aggregate and non-profiling form, in accordance with Code 7, Article 2.2. The STVs shall define the minimum necessary retention periods.

Art. 3 — Biodiversity Council

1. Every Circle 1 shall establish a Biodiversity Council composed of three to five members with competences of at least level L2 or L3 in the relevant disciplines, including ecology, zoology, botany, entomology, ethology and conservation. The members shall be drawn by lot in accordance with Article 12-bis of Code 3, shall remain in office for one year and may not be drawn by lot again for the same Council until twelve months have elapsed from the end of their term of office.
2. The Biodiversity Council shall:

   a) maintain the Biodiversity Register and the inventory of sanctuaries, in compliance with the territorial competences of Code 10;

   b) define, within the competences assigned to this Code, the indicators of biodiversity, of the biological functionality of corridors and of animal welfare;

   c) draw up and update the Biodiversity STV, the Refuge Sanctuaries STV, the Collaborating Animals Welfare STV jointly with Code 9, the Domestic Welfare STV and the Wild Bees STV, and deliver the binding opinion on the Pollinators STV of Code 9;

   d) draft and update the Welfare Sheets;

   e) carry out or coordinate the ecological impact assessment for the aspects assigned to this Code;

   f) feed the Dependency Register governed by Code 15;

   g) ensure technical coordination with the Habitat and Territory Council of Code 10, the

Agroecological Council of Code 9, the Health Council of Code 6, the Energy and Water Council of Code 8 and the Care Council of Code 12.

3. The mandatory opinions of the Biodiversity Council provided for by Codes 9 and 10 are binding exclusively as regards the indicators and parameters of biodiversity, animal welfare and biological functionality expressly assigned to this Code. Such opinions do not determine the location, the geometry, the intended use or the imposition of a territorial constraint, which remain within the competence of Code 10.

4. The technical acts of the Biodiversity Council shall be adopted in implementation of the STVs in force. Discretionary proposals shall be adopted by the consensus method through the absence of reasoned objections, pursuant to Code 3, after publication for at least seventy-two hours. Publication shall not include data whose disclosure could cause harm to the protected species or sites.

5. The Biodiversity Council is the local branch of the Competence Circles for Biodiversity and Seeds and for Animal Care. It shall verify and authorise non-exploitative cohabitation and collaboration pursuant to Articles 13.3, 13.3-bis and 13.3-ter of the Constitution.

Art. 4 — Ecological sanctuaries

1. Every federated Basin composed of three or four Circles 1 shall establish at least one sanctuary, in accordance with the territorial planning of Code 10. Planning shall give priority to degraded areas capable of regeneration or to semi-natural areas of high ecological value. Establishment shall take place:

   a) on a proposal from the Biodiversity Council;

   b) after the mandatory opinion of the Habitat and Territory Council;

   c) by resolution of the General Assembly adopted by qualified majority, in accordance with the rules of the Constitution and of Code 3.

2. The sanctuary is dedicated to the maximum ecological integrity compatible with the characteristics of the area and to the stability of the related protective function. Within it, it is prohibited to:

   a) build, seal the soil, carry out productive activities, hunt, or carry out intensive gathering or removals incompatible with the protection regime;

   b) introduce invasive alien species or genetically modified organisms into the wild environment;

   c) use motorised means, except for interventions authorised for safety, conservation or maintenance;

   d) produce continuous artificial noise incompatible with the purposes of protection;

   e) make public the detailed coordinates of nests, dens or wild hives;

   f) carry out invasive research without a Safety Sheet in force and the authorisation of the Biodiversity Council.

3. The following are permitted, exclusively within the limits of the relevant STVs:

   a) non-invasive monitoring;

   b) light maintenance of the perimeter paths;

   c) non-invasive educational activities carried out from the margins of the area;

   d) conservation or ecological restoration interventions;

   e) interventions necessary to deal with safety risks.

   The interventions referred to in letters d) and e) require the authorisation of the Biodiversity Council and, where relevant, a Safety Sheet, the recording of the intervention and a reversibility or restoration plan.

4. Access to the inner areas of the sanctuary is permitted exclusively for the activities permitted by paragraph 3 and under the conditions established by the related STVs. Permanent free access is not permitted.

5. Every sanctuary shall be entered in the federated Land Register governed by Code 10, Article 7. The public level shall contain only aggregate information or information otherwise free of sensitive

coordinates. The detailed technical level is accessible exclusively to the competent Councils; accesses shall be recorded and the related logs shall be retained for twelve months.

Art. 4-bis — Refuge sanctuaries

1. Animals rescued from systems of exploitation, those retired from collaboration and those present on the date of the Community's accession for which the conditions of Article 6-bis of Code 9 are not met shall be received in a refuge sanctuary or in an authorised non-exploitative cohabitation.
2. Every animal received has the right to life and to care and is not transferable, unless the transfer is necessary for its welfare and attested by an L3 veterinary competence. Slaughter, killing for convenience, transfer for consideration, use in work and breeding for purposes of use are prohibited.
3. The animals received shall not be bred. Where necessary for their welfare and for the capacity for care, the prevention of births shall take place by the non-harmful methods defined by the Refuge Sanctuaries STV.
4. What the animal produces spontaneously may be collected only under the conditions of Article 13.3-ter of the Constitution. It may not constitute a production objective, be planned in the Basket or justify an increase in the number of animals.
5. Every Basin composed of three or four Circles 1 shall guarantee at least one refuge sanctuary, sized according to the animals recorded in the census. The care of the animals received falls within the CBO, pursuant to Article 7.2 of the Constitution and Code 1.
6. A Welfare Sheet shall be kept for each animal or group. Feeding and veterinary care shall be ensured without compromising levels 1 and 2 of the human Basket.
7. Euthanasia is permitted exclusively under the conditions of Article 7, paragraph 12.
8. Access by persons to the refuge sanctuary is permitted for care, learning and relationship, in compliance with the Welfare Sheets.

Art. 5 — Ecological corridors and buffer zones: biological parameters

1. Code 10 governs the location, the cartographic dimension, the geometry and the territorial constraints of ecological corridors and buffer zones, as well as land take. This Code governs exclusively the biological parameters of functionality, the indicators, the thresholds, the criteria of biological equivalence and the impact assessment as regards the aspects of biodiversity and animal welfare.
2. The minimum territorial radius of five hundred metres and its possible reduction to two hundred metres are governed by Code 10, Article 6. As regards the biological aspects, the assessment of functional equivalence shall consider at least:
   a) the density and continuity of flowering;
   b) the continuity of the vegetation cover;
   c) the presence and continuity of functional habitats;
   d) compliance with the prohibition of treatments provided for by Code 9, Article 2.4, letter b);
   e) compliance as regards the practices prohibited by Code 9, Article 6-bis, paragraph 5, letter c);
   f) the biological indicators of pollinators defined by the STV.
3. Where Code 10 allows the reduction of the radius to two hundred metres, functional equivalence as regards the biological aspects shall be attested by the Biodiversity Council in accordance with the joint Biodiversity and Corridors STV. The attestation concerns exclusively biological functionality and does not replace the territorial decision falling to Code 10.
4. Every plan or intervention that interrupts a corridor or reduces a buffer zone shall be subject to an ecological impact assessment limited to the aspects of biodiversity, animal welfare and biological functionality assigned to this Code. The opinion of the Biodiversity Council is binding within the limits established by Article 3, paragraph 3.

Art. 6 — Wild bees and wild pollinators

1. Wild populations of pollinators constitute ecological commons protected by this Code. Colonies housed in custodial hives are governed by Article 6-bis of Code 9.
2. Hybridisation between housed colonies and wild populations is prohibited where, according to the indicators and thresholds of the Wild Bees STV, it causes or risks causing a significant alteration of the genetic heritage of the local wild populations.
3. It is prohibited to:

   a) intentionally destroy nests of wild pollinators;

   b) take honey from wild colonies;

   c) use systemic pesticides in the territorial zones in which their use is prohibited by Code 10 or by the relevant STVs;

   d) carry out activities incompatible with the conservation of the habitats of wild pollinators.
4. The census of wild pollinators shall be carried out using proportionate criteria, in aggregate and non-profiling form. The coordinates of sensitive sites shall be kept exclusively in the restricted technical level.
5. The Wild Bees STV shall define at least:

   a) the indicators of the local populations;

   b) the thresholds of genetic alteration;

   c) the methodologies of observation and ascertainment;

   d) the measures of prevention, containment and restoration.
6. The Biodiversity Council shall deliver the binding opinion on the Pollinators STV of Code 9 as regards the parameters of colony welfare and of protection of wild populations and of biodiversity.

Art. 7 — Collaborating animals, assistance animals and proximity companion animals

1. The collaboration of animals in light work is permitted exclusively under the conditions of Article 13.3-bis of the Constitution and of Article 6-bis, paragraph 3, of Code 9. For each animal an individual Welfare Sheet, a register of hours and a periodic veterinary check shall be kept; in the absence of a Sheet in force, collaboration shall be suspended. An animal retired from collaboration shall remain in the Community or be received pursuant to Article 4-bis.
2. Cohabitation with proximity companion animals is permitted as non-exploitative cohabitation pursuant to Article 13.3 of the Constitution. It shall be verified and authorised by the Biodiversity Council on the basis of the Domestic Welfare Sheet.
3. In the absence of the conditions of Article 13.3 of the Constitution, the Biodiversity Council shall propose the measures necessary for the animal’s welfare and, if these are not implemented, its reception in a sanctuary pursuant to Article 4-bis, in accordance with the procedures of Code 4.
4. The daily care of the proximity companion animal shall be ensured by the cohabitation nucleus. Circle 1, and the federated level where necessary, shall guarantee system-level protection, the Domestic Welfare Sheet and the balance of food resources in the manner provided for by this Code and by the STVs.
5. The public register of proximity companion animals is aggregate and non-profiling and may contain only, for each Circle:

   a) the number of animals;

   b) the species;

   c) the aggregate figure relating to sterilisation.

   Any individual data necessary for care or for health interventions shall be kept separately, in confidential form and in accordance with the rules of the competent Codes.

6. The following are prohibited:

   a) breeding and reproduction for purposes of transfer or use;

   b) mutilations carried out exclusively for aesthetic purposes;

   c) abandonment;

   d) transfer for consideration, except for the documented reimbursement of permitted out-of-pocket expenses;

   e) any management incompatible with the welfare parameters established by the Domestic Welfare Sheet.

7. Entrustment free of charge is permitted. The registration of the adoption shall be tracked by proportionate and non-profiling means.

8. The cohabitation nucleus shall ensure that the animal has adequate space, movement, sociality, rest, basic care and feeding compatible with its needs, in accordance with the Domestic Welfare Sheet.

9. The individual accumulation of animals is permitted only within the capacity for care defined by the Domestic Welfare Sheet. The assessment shall consider at least the species and number of the animals, the space available, the health conditions, the time available and the actual capacity to guarantee the welfare of each animal. Exceeding the capacity for care constitutes a violation pursuant to Article 10.

10. Sterilisation is recommended where appropriate, but is not imposed as a general rule. As regards health, zoonotic or collective-risk aspects, the competences, procedures and guarantees of Code 6 shall apply, including the collective measures permitted by its Article 2-bis, paragraph 3-bis. Every measure shall comply with criteria of proportionality and temporariness, guarantee that the person concerned is informed and be subject to review and to the guarantees provided for.

11. The feeding of proximity companion animals may be ensured by means of resources compatible with the Basket, suitable scraps or a dedicated fund. Such resources may not compromise the human Basket of levels 1 and 2 and are governed by the Basket STV of Code 9.

12. Euthanasia for mere convenience is prohibited. It is permitted exclusively in the presence of irreversible suffering attested by two L3 competences, at least one of which is veterinary, in compliance with the health competences of Code 6 and with the Domestic Welfare Sheet. The intervention shall be documented and tracked; the trusted person shall be informed, except in the case of reasoned impossibility or of urgency incompatible with prior notice.

13. The Biodiversity Council shall coordinate with the Health Council the aspects relating to zoonoses and health security and with the Care Council the aspects relating to the support of frail persons who live with animals.

14. **Assistance animals.** An animal may assist a person with a disability or frailty only if the activity is compatible with its temperament, is learned without coercion and does not compromise its welfare. The Biodiversity Council shall verify these conditions together with the Care Council. The animal has the right to rest and to retirement; when it can no longer or must no longer assist, the person shall be guaranteed equivalent assistance in accordance with Code 12.

Art. 8 — Safety, measurement, training and right of interruption

1. Activities carried out in a sanctuary or concerning wild fauna, wild pollinators, collaborating animals, animals received or proximity companion animals shall be governed by a Welfare Sheet in force and, where required by the nature of the activity, by a Safety Sheet in force.

2. The Safety Sheet adopted pursuant to this Code governs the ecological, biological and animal welfare risks falling within the competences of Code 13. The general safety of persons, infrastructure and tasks is governed by Code 14. The Biodiversity Council shall deliver the opinion within its competence on the ecological aspects.

3. The necessary personal protective equipment and other equipment shall be managed in accordance with the commons regime provided for by the competent Codes. The lack of an item of equipment expressly

indicated as essential in the Safety Sheet entails the suspension of the activity concerned until safe conditions are restored, in accordance with the procedures of Code 14.

4. Measurement and monitoring are permitted exclusively for the protection of animal welfare and biodiversity, for the verification of pollination functions or for the assessment of ecological resilience. Data shall be aggregate, non-profiling and retained for the minimum time necessary, in accordance with Code 7, Article 2.2, and the relevant STVs. The competences of Code 6 in health matters remain unaffected.

5. The training required is structured as follows:

   a) level L1 for operational access to sanctuaries and for the ordinary management of animals;

   b) level L2 for the advanced management of the activities identified by the STVs;

   c) level L3 for the design and validation of the STVs and the Welfare Sheets, in the cases provided for.

6. Anyone who detects a serious and immediate risk to fauna, an animal or a person may interrupt the activity concerned and shall inform the competent Councils without delay. An interruption carried out in good faith to prevent harm may not give rise to retaliation or detriment.

Art. 9 — Biodiversity Dependency Register

1. The Biodiversity Council shall feed the Dependency Register governed by Code 15, distinguishing at least:

   a) **ecological dependencies**, relating to functions such as pollination, biological control, ecological fertility or connectivity, where these are not sufficiently available or substitutable within the Confederation;

   b) **competence dependencies**, relating to the unavailability in the Basin of the L2 or L3 competences necessary in matters of biodiversity, veterinary science, ethology or conservation;

   c) **material or technological dependencies**, relating to the unavailability of genetic material, monitoring equipment, technical instruments or diagnostic capacities necessary for the continuity of the protective functions.

2. For every dependency classified as critical, the Register shall indicate the person responsible, the verifiable objective, the temporary containment measures and the final deadline envisaged for overcoming the dependency.

3. The federal level shall carry out at least one annual audit of the ecological autonomy of the Confederation, by means of independent L3 members drawn by lot in accordance with Article 36 of Code 4.

Art. 10 — Prohibitions, violations and guarantees

1. It is prohibited to:

   a) derive rents from wild fauna, from wild pollinators, from the function of wild pollination or from the protective function of sanctuaries;

   b) make access to the STVs essential for biodiversity, animal welfare and the protection of wild bees, as well as to the essential Safety Sheets, subject to payment or an exclusive licence;

   c) register, file, claim or maintain patents or exclusive titles over the wild genetic material and the local genetic heritage classified as commons by Article 1, paragraph 3, letter a), including local breeds and lines where they form part of that heritage;

   d) introduce invasive alien species or genetically modified organisms into the wild environment, or introduce proprietary bee lines or biological material in such a way as to create a critical dependency in accordance with Code 15 or Code 9, Article 6-bis;

   e) kill or mistreat animals, use them or collect their products outside the conditions of Article 13 of the Constitution and of Article 6-bis of Code 9, or keep a number of animals exceeding the capacity

for care defined pursuant to Article 7, paragraph 9;

f) make public the detailed coordinates of nests, dens or wild hives;

g) transfer to parties external to the Confederation the control of sanctuaries, of wild gene banks or of the Biodiversity Register.

2. Violations of paragraph 1 constitute substantial violations. Ascertainment, precautionary measures, the suspension or deactivation of activities and the remedies are governed by Code 4. The Biodiversity Council shall document the facts and transmit its technical assessments to the competent bodies.

3. The person concerned or anyone who demonstrates a qualified interest may activate the Guarantee in accordance with the procedures of Code 4 within fourteen days of the communication of the decision or of actual knowledge of the violation. Any appeal shall not automatically suspend the urgent measures necessary to prevent serious and immediate harm.

Art. 11 — Transitional provisions, coordination and precedence

1. This Code is coordinated with:

   a) the Constitution, Articles 3.1, 13, 14 and 32;

   b) Code 1, Articles 27 and 32;

   c) Codes 2, 3, 4, 5 and 6, each for its respective competences;

   d) Code 7, Article 2.2, for the network and data processing;

   e) Codes 8 and 9 for water, agroecology, pollinator refuges and food requirement;

   f) Code C.1-Annex A for the production aspects within its competence;

   g) Codes 10, 12, 14 and 15 for territory, care, safety and the Dependency Register.

2. Within six months of entry into force, every Circle 1 shall carry out a census, by aggregate and non-profiling means, of:

   a) the wild fauna detected;

   b) the wild pollinators detected;

   c) the known nesting sites, keeping the detailed coordinates confidential;

   d) the land eligible for the establishment of a sanctuary;

   e) the working and farmed animals present;

   f) the number and species of proximity companion animals;

   g) the main ecological and competence dependencies.

   Within the same time limit a minimal and provisional version of the Biodiversity Register shall be activated.

3. Within twelve months of entry into force, every Circle 1 shall activate:

   a) the Biodiversity Council;

   b) the minimum Biodiversity STV;

   c) the Refuge Sanctuaries STV, the Collaborating Animals Welfare STV jointly with Code 9 and, in every Basin, at least one refuge sanctuary;

   d) the Domestic Welfare STV;

   e) the Wild Bees STV;

   f) the necessary Safety Sheets and Welfare Sheets;

   g) the node of the federated biodiversity network.

   In the event of a documented overlap of the transitional burdens relating to Codes 9, 10 and 13, the Assembly may grant a reasoned extension not exceeding six months. The extension shall be accompanied by a binding plan with persons responsible and intermediate deadlines and may not entail the interruption of the essential functions of the Basket.

4. Activities existing on the date of entry into force shall be subject to a conformity check. The Biodiversity

Council shall carry out the technical assessment and transmit the outcomes to the competent bodies in accordance with Code 4. In the event of non-conformity:

a) a time limit for compliance of not less than thirty days shall be assigned, except in cases of serious and immediate risk;

b) the compliance plan shall indicate the measures to be adopted, the persons responsible and a final deadline, as a rule not exceeding ninety days, except in the case of documented technical impossibility;

c) where there is a serious and immediate risk to biodiversity or animal welfare, proportionate urgent measures may be adopted in accordance with the procedures of Code 4;

d) where compliance is technically impossible, the deactivation procedure provided for by Code 4 shall be initiated, accompanied by a substitute plan;

e) if the function concerned directly guarantees provisions of the Basket of level 1 or 2, deactivation shall be ordered only after the activation of a compliant substitute function, except for the urgent measures necessary for safety, in accordance with Codes 4 and 14.

5. In the event of normative overlap, precedence operates exclusively within the subject matter assigned to each Code:

a) Code 13 prevails as regards animal welfare parameters, biodiversity indicators, the biological functionality of corridors, the ecological criteria for the management of sanctuaries and the impact assessment as regards the aspects of biodiversity and welfare;

b) Code 10 prevails as regards intended use, location, the geometry of interventions, the Land Register and territorial constraints;

c) Code 9 prevails as regards agroecological use, crops, the technical management of pollinator refuges and food requirement;

d) Code 8 prevails as regards the functional management of water;

e) Code 6 prevails as regards health risks, zoonoses, clinical nutrition and pharmaceutical matters;

f) Code 14 prevails as regards the general safety of persons, infrastructure and tasks.

No precedence clause transfers or absorbs competences assigned to other Codes. Conflicts that cannot be resolved by coordinated interpretation shall be submitted to the competent bodies in accordance with the procedures of the legal order; in the meantime, proportionate measures shall be adopted to protect the persons, animals and ecological functions concerned.